STATE OF MAINE

ANDREW ROBBINS, ET AL.,

Plaintiffs,

v.

STATE OF MAINE, ET AL.,

Defendants.

SUPREME JUDICIAL COURT
Sitting as the Law Court

Docket No. Ken-25-137

EMERGENCY MOTION:
Action Requested by June 23, 2025

APPELLANT STATE OF MAINE'S EMERGENCY MOTION TO STAY ALL ACTION IN THE SUPERIOR COURT RELATED TO COUNT III WITH INCORPORATED MEMORANDUM OF LAW

Pursuant to Maine Rule of Appellate Procedure 10(a)(4), Appellant State of Maine files this Emergency Motion to Stay All Action in the Superior Court related to Count III and Incorporated Memorandum of Law, in light of the State of Maine's appeal of the Superior Court's March 7, 2025, "Order After Phase One Trial (Counts I, III, and V)" ("Post-Trial Order").

The State of Maine respectfully requests that the Court confirm that (1) the Maine Rule of Appellate Procedure 3(b) automatically prevents the Superior Court from taking further action during the pendency of this appeal; or that (2) in the alternative this Court should issue a discretionary stay of all Superior Court action pending this appeal.[1]

[1] If the Court finds it does not have sufficient time to act by June 23, the State of Maine respectfully requests that it enter a temporary stay while it considers this filing. Although the State of Maine is not specifically requesting to be heard at oral argument, it would be prepared to answer any questions the Court may have.

In accordance with Maine Rule of Appellate Procedure 10(a)(2), undersigned counsel affirms that he has informed counsel for all parties of its intent to file this Emergency Motion. Counsel for Petitioner-Plaintiffs ("Petitioners") has indicated that they intend to submit an opposition, indicating that they will oppose it on its merits and for it allegedly being untimely. Counsel for all other parties have indicated that they do not intend to take a position on the Emergency Motion and do not plan to respond

Given the press of business of the Office of Attorney General, undersigned counsel affirms that he is filing this notice as soon as practicable as to provide sufficient notice to the Court and other parties.[2]

MEMORANDUM OF LAW

RELEVANT PROCEDURAL BACKGROUND

The following is an abbreviated chronology of the filings and events most relevant to this Emergency Motion.[3] Several parties filed motions for summary judgment in November 2024. *See* Ex. A at 44, Ex. H ¶ 6. The Superior Court ruled

[2] To the extent Petitioners intend to argue this filing is untimely, they suffer no prejudice. Even if it were untimely as an Emergency Motion, it would be timely as a standard motion. Moreover, Petitioners have previously responded to these legal arguments in short order when they were litigated below. *See* Exs. C & D. The State of Maine could arguably wait until Monday, June 9 to file this motion, as that is when parties will supply the Superior Court with names of individuals asserted to be eligible for habeas relief, which the Superior Court will in turn use to determine whether any hearing is still necessary. *See* Ex. G at 2. However, the State of Maine wanted to file in advance of Monday in order to preserve the full two-week response window for other parties as envisioned by the Appellate Rules. If the Court determines that this Emergency Motion is untimely, the State of Maine requests that it be treated as a standard motion.

on these and other pre-trial motions, in a January 3, 2025 order titled "Combined Order on Partially Dispositive Motions" ("Summary Judgment Order"). *See* Ex. A at 48-49. A bench trial was held from January 22-24, and post-trial briefing was completed February 28.

On March 7, 2025, the Superior Court issued a comprehensive Post-Trial Order, which contained fact-finding, legal conclusions, and certain relief as a result of what occurred at trial. *See* Ex. A at 54, Ex. H ¶ 9. Among the relief issued by the Court included a framework for conducting hearings for the purpose of issuing individual writs of habeas corpus to eligible Petitioners. *See* Post-Trial Order at 40-42, *see also* Ex. H ¶ 9.e. Important features of the framework include a plan for the Superior Court to "conduct serval court sessions at several locations in northern, central and southern Maine during the month of April 2025," at which "any Subclass member who has been detained and remains detained for more than 14 days after their initial appearance or arraignment" would be released. *See* Post-Trial Order at 42. The order also provided that criminal charges would be dropped for Petitioners who do not have an assigned lawyer within 60 days of initial appearance. *Id.*

[3] For the Court's convenience, attached as "Exhibit A," is an up-to-date Docket Report, which includes events that may have taken place since the Record was transmitted to the Law Court. Copies are attached of all potentially relevant filings that have occurred since the State of Maine filed its March 27, 2025 Notice of Appeal. Finally, attached at Exhibit H is a more detailed chronology of events potentially relevant to this Emergency Motion or the merits of the appeal.

Both MCPDS and the State of Maine separately noticed timely appeals on March 27. *See* Ex. A at 54-55. After a conference of counsel, Petitioners filed at the suggestion of the Superior Court a "Motion to Continue Action on Count III" ("Ex. D"). *See also* Ex. H ¶¶ 12-14. On May 7, the Superior Court granted the Petitioners' motion over the State of Maine's opposition as part of a "Combined Order on All Pending Motions" (Ex. F). *See also* Ex. H ¶ 16. However, counsel for the State of Maine was not included on the email distribution for the Combined Order, nor was it ever received by mail.[4] On May 15, the Superior Court issued an "Order Scheduling Individual Habeas Corpus Hearings" (Ex. G), setting an initial habeas hearing for June 24 and requiring parties to supply a list of people potentially eligible for habeas relief by June 9. On June 6, Sheriffs' counsel and Petitioners' counsel circulated lists of individuals potentially eligible for habeas relief at the June 24 hearing, which will presumably be provided to the Superior Court on June 9.[5]

[4] Superior Court staff provided an electronic copy to counsel for the State of Maine on May 19 after counsel reached out upon not being included on an email distribution list for a subsequent May 15 order.

[5] As of this date, there appear to be four individuals on the list for the June 24 hearing and one person one the list for the July 1 hearing, but it is unclear how many individuals will be eligible for release under the Superior Court's framework. If at any point it becomes clear to undersigned counsel that either hearing is cancel, undersigned counsel will promptly notify the Court via the Clerk's Office.

LEGAL STANDARD

Ordinarily, a party seeking a discretionary stay pending appeal is "subject to the same standards for obtaining injunctive relief that are applied in the trial courts." *Nat'l Org. for Marriage v. Comm'n on Govt'l Ethics & Elections*, 2015 ME 103, ¶ 14, 121 A.3d 792 (per curiam) (quoting Maine Appellate Practice § 10.1 at 107-98 (4th ed. 2013). Such a party must demonstrate that

> (1) it will suffer irreparable injury if the [stay] is not granted; (2) such injury outweighs any harm which granting the [stay] would inflict on the other party; (3) it has a likelihood of success on the merits (at most, a probability; at least, a substantial possibility); and (4) the public interest will not be adversely affected by granting the [stay].

Id. (alterations in original) (quoting *Bangor Historic Track, Inc. v. Dep't of Agric., Food & Rural Res.*, 2003 ME 140, ¶ 1, 837 A.2d 129 (per curiam).

However, if a party asserts that the trial court failed to properly apply a jurisdictional rule, then the Law Court analyzes the rule's applicability de novo and without regard to the traditional injunction test. *See id.*, ¶¶ 8-12; *see also Jones v. Sec'y of State*, 202 ME 111, ¶¶ 3-4, 238 A.3d 250 (same); *cf In re Child of Radience K.*, 2019 ME 73, ¶ 48, 208 A.3d 380 ("After an appeal is filed, 'the trial court shall take no further action pending disposition of the appeal,' unless either the trial court's action is explicitly permitted by Maine Rule of Appellate

Procedure [3.]" (cleaned up) (quoting *Doggett v. Town of Gouldsboro*, 2002 ME 175, ¶5, 812 A.2d 256)).

ARGUMENT

Maine Rule of Appellate Procedure 3(b) should have stayed all action in the Superior Court when the State of Maine appealed its March 7 Post-Trial Order. No exception applies regarding Count III.[6]

But even if Appellate Rule 3(b) did not automatically stay all action, the Court should issue a stay pursuant to its "inherent authority." *See Nat'l Org. for Marriage*, 2015 ME 103, ¶ 13, 121 A.3d 792. A stay is appropriate because the habeas framework is entirely dependent upon several legal issues ripe for review that this Court may never have the opportunity to resolve if proceedings continue below. Moreover, the State of Maine's request meets the legal standards that this Court applies when considering requests for discretionary stays pending appeal.

[6] Normally, Appellate Rule 3(b) would require a trial court to take no further action on any aspect of a case unless the Law Court issues an order instructing it to do so or if a party files a valid motion pursuant to Appellate Rule 3(c). Petitioners' "Motion to Continue Action on Count III" was an attempt to file such a motion. Arguably, Petitioners have not asked the Superior Court to proceed on any other Count, and therefore action on all counts is arguably stayed. However, the State of Maine's sole focus is its appeal of Count III and the relief that the Superior Court intends to grant.

I. Appellate Rule 3(b) should have automatically stayed all action in the Superior Court upon appeal of the Post-Trial Order.

This Court's "Notice of Docketing in the Law Court" states clearly that the Maine Rules of Appellate Procedure apply to this appeal. Appellate Rule 3(b) unambiguously directs that "When an appeal is taken from a trial court action, the trial court's authority over the matter is suspended and the trial court shall take no further action pending disposition of the appeal by the Law Court." *Nat'l Org. for Marriage*., 2015 ME 103, ¶ 7, n.6, 121 A.3d 792 (cleaned up) (quoting *Flaherty v. Muther*, 2011 ME 34, ¶ 7, 17 A.3d 663). Moreover, this Court's precedent states that Rule 3(b) prohibits a trial court from taking virtually any action, unless explicitly permitted by an exception carved out in Appellate Rule 3(c) or (d). *See, e.g.*, *Flaherty*, 2011 ME 32 ¶ 90, 17 A.3d 640 (inappropriate to award costs pending appeal); *Lund v. Lund*, 2007 ME 98, ¶ 20, 927 A.2d 1185 (no authority to change a judgment pending appeal); *Doggett v. Town of Gouldsboro*, 2002 ME 175, ¶ 6, 812 A.2d 256 (no authority to issue remand pending appeal); *Erickson v. State*, 444 A.2d 345, 348-49 (Me. 1982) (no authority to decide Rule 60(b) motion pending appeal).

In civil cases like this, the only exceptions described by Appellate Rule 3 are actions taken pursuant to Maine Rules of Civil Procure 27(b), 54(b)(3), 60(a), 62(a), 62(c), or 62(d), or actions taken "with leave of the Law Court" as provided

by Appellate Rule 3(d). The Superior Court's forthcoming habeas hearings fit no exception.[7]

A. Appeals docketed in the Law Court are always governed by the Maine Rules of Appellate Procedure, not ancient or foreign common law.

Below, Petitioners argued that the Superior Court was free to ignore Appellate Rule 3, citing a 1959 Reporter's Note to Maine Rule of Civil Procedure 81, which refers to the "limited applicability" of the Civil Rules to certain habeas actions. *See* Ex. D at 2. This is a red herring.

But the Maine Rules of Appellate Procedure—and not the Civil Rules—"govern the procedure for review of any judgment, order, or ruling" from the Superior Court. Me. R. App. P. 81 (emphasis added); *see also* Ex. E at 15 ("You must follow the Maine Rules of Appellate Procedure.").[8]

Petitioners' citations below to Law Court decisions regarding the availability of appeal—all issued decades before the adoption of the Appellate Rules—do not advance their argument.[9] *See* Ex D. at 3-4.

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[7] Civil Rule 27(b) relates to depositions pending appeal, while Civil Rule 54(b)(3) relates to attorneys' fees. Civil Rules 60(a), 62(a), and 62(c) relate to actions courts may take after the entry of judgment, which has not occurred here. And Civil Rule 62(d) permits enforcement or alterations of an injunction, which is not a form of relief issued pursuant to Count III.

[8] Moreover, the "limited applicability" Petitioners' pointed to below refers to "post-conviction relief" found in Title 15 of the Maine Revised Statutes, not the pre-conviction statutes housed in Title 14.

[9] It is telling that these decisions are all from the Law Court—where an appeal was taken—and not the Superior Court. To the extent that any of these century-old common law cases ever had any bearing on the State of Maine's ability to appeal a post-trial, pre-release order in a class habeas action, they were supplanted by the 2001 adoption of the Maine Rules of Appellate Procedure. Any citations to foreign common law in an attempt to override the Maine Appellate Rules, *see* Ex. D at 5-7, are plainly irrelevant.

B. Appellate Rule 3(c)(4) does not permit the Superior Court to proceed on Count III because its Post-Trial Order was not an order "granting or denying a motion for summary judgment."

Below, Petitioners asserted that Appellate Rule 3(c)(4) permits the Superior Court to move forward with Count III, arguing that its Post-Trial Order constitutes an "order granting or denying a motion for summary judgment . . . that does not resolve all pending claims." *See* Ex. D at 8. They seemed to theorize that because the Superior Court held a bench trial subsequent to issuing a Summary Judgment Order, they can bootstrap to it the Post-Trial Order and characterize the latter as an order "granting or denying a motion for summary judgment." *Id.* This crabbed interpretation is simply wrong on the law.

In the litigation timeline, motions for summary judgment occur before—not after—bench trials. The Superior Court's Summary Judgment Order issued on January 3, 2025 is the type of order that would fall under Appellate Rule 3(c)(4). But a Post-Trial Order is a different animal. The difference between the two is highlighted by the familiar summary judgment standard: At the summary judgment phase, courts are required to view evidence "in the light most favorable to the nonmoving party." *Bean v. City of Bangor*, 2022 ME 30, ¶ 2, 275 A.3d 324. Not so post-trial. The precise purpose of a trial is to resolve factual disputes. *See* Post-Trial Order at 2 ("The Court begins by making findings of fact . . .").

The Superior Court did not characterize its Post-Trial Order as resolving a summary judgment motion at the time was issued, officially captioning the decision as an "Order After Phase One Trial." Petitioners saw it this way too, at least when drafting their post-trial brief. There, they never asked for "summary judgment," in stark contrast with their partial summary judgment motion. Their post-trial reply brief is even more revealing. On at least two occasions, they acknowledged that the "trial" was a "stage" of the litigation distinct from summary judgment. *See* Post-Trial Reply Br. at 19 ("Defendants reassert arguments already disposed of at the summary judgment stage") (emphasis added); *id.* at 14 ("Defendants failed to raise this defense either at summary judgment or during the evidentiary hearing").

The Superior Court seemed to adopt a flavor of Petitioner's argument when it determined that Appellate Rule 3(c)(4) permits it to press onward during the course of this appeal. *See* Ex. F. at 11 ("The January 3rd Order, the January 2025 trial, and the March 7th Order were all part and parcel of the decision of the parties to litigate and resolve Count III (and the other Counts) by way of Rule 56 of the Maine Rules of Civil Procedure, which anticipates and provides for such sequential proceedings."); *see also generally*, *id.* at 10-12. But this theory conflates the summary judgment phase and trial phase when Appellate Rule 3(c)(4)'s narrow

exception applies only to the former.[10]

Because the Court's Post-Trial Order is not "an order granting or denying a motion for summary judgment," Appellate Rule 3(c)(4) does not provide Petitioners a basis to proceed with Count III in the Superior Court when the State of Maine's appeal is docketed in the Law Court.

C. The Superior Court's Post-Trial Order does not constitute an "injunction" that could qualify as an exception to Appellate Rule 3(b).

Below, Petitioners seemed to argue that the Superior Court could move forward with habeas proceedings because the Post-Trial Order's habeas framework feels more like an injunction than a judgment for damages. *See* Ex. D at 9. The Superior Court correctly rejected this theory. *See* Ex. F at 10 n.4.

Despite Petitioners' theory, court remedies do not fall into the dichotomy of "injunction/non-injunction" or "damages/non-damages," even if those are more common than others. Instead, there are a host of remedies courts can issue, and a writ of habeas corpus is neither a judgment for damages, nor an injunction.

Petitioners tried to point to a portion of a Black's Law Dictionary definition

[10] This is easier illustrated in a less complex case. One could imagine a car-crash case where a party moves for partial summary judgment on liability but not damages. If the case needed to proceed to a bench trial on damages because certain material facts were still in dispute, one would hardly characterize a post-trial damages determination to be a "summary judgment order." The same is true here where the Superior Court made factual findings in its Post-Trial Order and applied those findings to the relief granted in Count III. *See* Post-Trial Order at 2 n.2. ("The Court is unpersuaded that factual findings play no meaningful role in the Court's consideration of the scope of the remedy available in habeas claims, in addition to determinations of liability in such claims.").

for "Injunction," which notes that injunctions involve a "court order commanding or preventing an action." *See* Ex. D at 9. But the fact that injunctions require parties to take an action (or inaction) does not mean that they are the only remedies that can do so. If a habeas writ were truly a form of injunction, Black's Law Dictionary would almost certainly provide more evidence than the few stray words quoted by Petitioners below. Yet the word "habeas" appears nowhere in the current, thousand-word definition of "Injunction" in Black's.[11] *Injunction*, Black's Law Dictionary (12th ed. 2024), available at Westlaw. Likewise, Black's comprehensive definition for "habeas corpus" never uses or mentions the word "injunction." *Habeas corpus*, Black's Law Dictionary (12th ed. 2024).

Petitioners also argued below that the Superior Court should look to the *Betschart* case in the District of Oregon and the Ninth Circuit to determine whether the Superior Court's order constitutes an injunction. But such foreign cases are irrelevant for purposes of interpreting Maine's Rules of Appellate Procedure. The appropriate authority on Maine law is this Court's precedent, which has consistently held that Maine's habeas jurisdiction and the relief it provides are entirely distinct from Maine courts' equitable jurisdiction and the injunctive relief available therein.

[11] The definition does state that injunctions are sometimes called a "writ of injunction." But this only serves to underscore that a "writ of injunction" is different from a "writ of habeas corpus." *Injunction*, Black's Law Dictionary (12th ed. 2024).

For example, in *Roussel v. State*, this Court extensively analyzed the distinction between habeas corpus jurisdiction and equitable (chancery) jurisdiction in the laws of England. *See* 274 A.2d 909, 913-18 (Me. 1971). It then described how those areas of law developed in Maine "in light of these separate and independent jurisdictions." *Id.* at 918. (emphasis added); *see also id.* at 923 (noting "the respective separate and independent habeas corpus and equity jurisdictions").

Likewise, Maine statutory law has long viewed injunctions as distinct from habeas writs. *Simpson v. Simpson*, 109 A. 254, 255 (Me. 1920), listed the types of cases that the Revised Statutes stated could be used to trigger the Law Court's jurisdiction, distinguishing between injunctions and habeas petitions. Not only has this Court long-considered injunctions to be distinct from habeas writs, but so has the Maine Legislature. Petitioners' conflation of the two for purposes of avoiding action in this Court is thus erroneous.

II. Even without Appellate Rule 3(b)'s automatic stay, it would be appropriate for this Court to rely upon its inherent power to stay proceedings in the Superior Court in order to avoid irreparable harm and to have an opportunity to rule upon critical statutory and constitutional questions that might otherwise evade review.

Because any action on Count III is automatically stayed by way of the State of Maine's appeal of the Post-Trial Order and Appellate Rule 3(b), this Court need

not weigh all of the potential reasons to rely upon its inherent authority as an independent basis for staying further proceedings on Count III. Yet if the Court were to go through such an analysis, the scales tip heavily toward issuing a stay.

A. The State of Maine will suffer irreparable harm if the Superior Court proceeds with Count III before this Court has an opportunity to review the legal issues on appeal.

The irreparable harm of proceeding with the habeas framework under Count III is clear. The State of Maine, in the interest of public safety, has an obvious stake preventing individuals—especially dangerous individuals—from obtaining release from custody via a writ of habeas corpus, if such writ were invalid. If the State of Maine waited to appeal until after the Superior Court issued habeas writs ordering release, it may be too late to unring such a bell.

Below, Petitioners argued that after a habeas writ orders release of an individual, respondents may not evade their discharge by filing an appeal. *See* Ex. D at 4. While the State of Maine does not concede that Petitioners are correct that this constitutes a hard-and-fast rule, it is true that this Court has commented that it would be counterintuitive to the logic behind Maine's habeas statute if a respondent could prevent someone's release of an individual by simply filing an appeal. *See, e.g.*, *Ex parte Holbrook*, 133 Me. 276, 277 (1935). It is therefore not implausible that this is the only opportunity for the State of Maine to seek review

of the important legal issues in this case before individuals—some of whom could pose very real public safety concerns—being released.

The Superior Court's post-trial factual findings themselves may have injected error into the habeas relief it has constructed for Count III, if such findings were in error or otherwise inappropriate. In addition to any trial errors that might be deserving of review, below are some of the important legal issues where this Court has never had an opportunity to weigh in, as it relates to releasing Petitioners, all of which are now appropriate to appeal post-trial:

1. Class Certification

Over MCPDS's opposition, Petitioners successfully sought certification as a class and subclass before the Superior Court. Yet Petitioners' own counsel has argued in a federal action that "there is no established class [habeas] remedy available in [Maine] state court." *See* State of Maine Post-Trial Brief at 12 n.6.

Staying the action below would allow this Court to decide whether such a remedy is in fact available, and if so, how it should function.

2. Interpretation of the Sixth Amendment

In its Summary Judgment Order, the Superior Court made numerous determinations about the scope of the Sixth Amendment, including when it "attaches" during the criminal process. Which members of the class are eligible for

relief is highly dependent on these interpretations of law. In accordance with standard civil litigation practice, no party attempted to file an interlocutory appeal of the Summary Judgment Order. But now that a bench trial has been held to make factual findings and apply the law to them, these issues are ripe for appeal.[12]

3. Availability of Habeas Relief for Individuals Accused of Crimes Historically Categorized as Felonies.

Following in the footsteps of Massachusetts, the very first Maine Legislature enacted a statute denying the availability of habeas writs to individuals accused of committing a felony. *See* Revised Statutes, 1821, 64, § 1; *see also* Ex. E at 10-12, & n.9. The Superior Court has already indicated its intent to disregard 14 M.R.S.A. § 5512 at future proceedings, despite it being a jurisdictional statute and one that Petitioners sought relief under in their Amended Complaint. *See* Ex. F at 6-9. This misreading of Maine's habeas law risks serious consequences for not only this case, but any future cases, if it is permitted to stand as precedent without the Law Court ever weighing in.

4. The Role of Public Safety in Considering Habeas Release

The State of Maine offered evidence at trial that the risks posed to public safety by individual Petitioners are not equivalent across all Subclass members, as

[12] That the State of Maine has argued that the Superior Court need not make factual findings to determine whether habeas relief is proper is of no consequence, as the Superior Court rejected such an argument and stated that it was incorporating such findings into its Count III analysis.

some are likely to pose far more danger than others, which Petitioners' own expert witnesses conceded at trial. The State of Maine argued below that certain aspects of public safety must be considered on an individual basis in weighing the release of subclass members, but the Superior Court rejected that argument. *See* Post-Trial Order at 31-33. The public deserves this Court's review.

5. Whether Remedies Beyond Discharge Are Available

At times in this litigation, both the State of Maine and Petitioners have argued that the only remedy available under Maine's habeas statutes is discharge from custody. The State of Maine maintains that position, but the Superior Court has rejected it, indicating that it intends to issue other forms of relief, including dismissal of charges. *See* Post Trial Order at 42.

6. When Habeas Relief Becomes Available

The Superior Court relied upon foreign law in determining that individuals should be released from custody after fourteen days if they have not been appointed a permanent attorney at initial appearance. It relied upon the same in deciding that criminal charges should be dismissed after 60 days. Whether these are the appropriate timetables—and whether this is the appropriate structure for such relief at all—is something that this Court Should determine.

7. The Structure of the Forthcoming Habeas Hearings

Finally, the Superior Court set up a framework and schedule for executing habeas relief that raises serious legal questions. The structure envisions that an individual Superior Court Justice will essentially ride circuit throughout the State of Maine, holding hearings to determine whether individuals are members of the Subclass and eligible for relief. Assuming a class-wide habeas petition is permissible under Maine law, this structure nevertheless seems to violate the very nature of what it means to be a "class action" under Rule 23.

A decent comparator would be the federal *Betschart* case in Oregon, where a federal judge provided the framework for class relief to habeas petitioners, but then remanded to Oregon state courts to properly execute relief. That would likewise be appropriate here—where a framework for the class's relief is finalized, to be implemented by local Superior Court Justices. If, instead, individualized hearings are held within the four corners of this lawsuit, then it no longer resembles a Rule 23 class action, as the Superior Court would no longer be determining the common issues among the class. And as a practical matter, to the extent that individualized determinations need to be made—from issues of public safety to whether local private counsel is available and qualified to represent a Subclass member—these are decisions best left in the hands of local Justices who are familiar with the criminal defendants and their local legal community.

The habeas framework also raises serious constitutional questions related to the Superior Court's ultra vires actions, including its intent to assume control of criminal dockets from colleagues around Maine. The Superior Court seems to indicate that it may also issue writs of habeas corpus before the hearings take place. *See* Ex. G at 2 ("Once this list [of incarcerated individuals potentially eligible for relief] is received by the Court, it will issue individual writs of habeas corpus along with transport writs.")

* * *

Not only are these issues important for review in this appeal, but many could resurface in other "phases" of this lawsuit. If the Superior Court has made a reversible mistake on an issue in the "Phase 1" trial, this Court should take the opportunity to correct those errors before they compound.

B. The State of Maine's injuries absent a stay outweigh Petitioners' injuries associated with granting a stay.

Any injury that Petitioners may suffer with a stay in place is outweighed by the State of Maine's injuries. As outlined above, the State of Maine's injuries—from the risk of irreparably executing invalid law to the practical risks to public safety—outweigh any potential risks to Petitioners if a stay is granted. All members of the Petitioner Subclass are still receiving individual, weekly reviews under the Unified Criminal Docket by local judges across Maine, an alternative

forum where their requested relief is not foreclosed. And as a practical matter, the number of individuals potentially subject to the Superior Court's habeas framework as set out in its Post-Trial Order is only likely to fall during the course of the appeal. When the Superior Court had initially envisioned habeas hearings to begin in April 2025, the number of individuals appearing on the "in-custody" list supplied by parties to the Court from the month of March was around 75. But by the time the Superior Court held an April 7, 2025 conference, that number appeared to drop to single digits. And this drop occurred before enactment of L.D. 1101, "An Act to Address the Limited Availability of Counsel in Courts to Represent Indigent Parties in Matters Affecting Their Fundamental Rights," which (1) allows judges to directly appoint qualified, non-rostered counsel for criminal defendants where MCPDS has not found an attorney; and (2) funds five additional assistant district defenders, alongside two paralegals and an office manager."

C. The State of Maine's appeal has at least a "substantial possibility" of succeeding on the merits.

This Court has indicated that a party's motion to stay pending appeal needs merely a "substantial possibility" of success on the merits in order to grant a stay. *See Nat'l Org. for Marriage*, 2015 ME 103, ¶ 14, 121 A.3d 792. Without fully briefing the merits of the legal issues discussed above, there is no question that the

State of Maine has a "substantial possibility" of succeeding on at least one, which could affect the validity or nature Superior Court's habeas framework.

D. The public interest will not be adversely affected by granting the stay.

In cases such as this, where the State of Maine is a party, the "public interest" prong of the test for an injunction or stay pending appeal will often merge with the prong that assessed the government's irreparable injury. *See, e.g.*, *Nken v. Holder*, 556 U.S. 418, 435. (2009). Because the State of Maine faces significant irreparable harm absent a stay, and because that harm outweighs the potential injury Petitioners will suffer if a stay is entered, the public interest will not be adversely affected by granting this emergency motion.

CONCLUSION

The State of Maine respectfully requests that this Court confirm that Maine Rule of Appellate Procedure 3(b) automatically stays all action in the Superior Court regarding Count III of the Amended Complaint during the course of this appeal.

Alternatively, if the Court does not find that Appellate Rule 3(b) automatically stays further action in the Superior Court, the State of Maine respectfully requests that this Court invoke its inherent authority to issue a

discretionary stay of all Superior Court action regarding Count III during the pendency of the appeal.

Dated: June 6, 2025

Respectfully submitted,

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